DEVISE MINING COMPANY (PVT) LTD
versus
AUTHUR CHIPUNZA

HIGH COURT OF ZIMBABWE
WAMAMBO J
HARARE, 29 JULY 2026

Urgent Chamber Application

N Manjoro, for the applicant
T T G Musarurwa, for the first respondent

WAMAMBO J: This is an urgent chamber application. The facts of the matter as adverted to by the applicant are as follows:

Applicants holds title to mining claims in Odzi area. Manicaland province. The mining claims are Portree SW 26 A (b) Portree 36, Portree SW 38 and Portree SW 39 collectively known as Potree.

Applicant also holds an Environmental Management Agency (EMA) certificate. Applicant

has obtained the requisite consent from Chief Makoni to conduct mining activities within the area. Applicant has engaged a prospective foreign investor based in Hong Kong. The proposed investment is of a significant commercial value and is subject to the completion of the due diligence process which includes physical inspection and access to the mining site. Respondent's conduct in obstructing access to the mining claims and interfering with the mining operations has resulted in the prospective investor being unable to access the mines. When applicant attended at the mining site with the prospective investor respondent and his family members obstructed the applicant from accessing the mining area. Respondent erected a barbed wire on the mining claims resulting in preventing applicant access to the mining area.

Applicant seeks the following relief: -

TERMS OF FINAL ORDER SOUGHT

That you show cause to the Honourable Court why a final order should be made in the following terms:

[1] The provisional order be and is hereby confirmed.

[2] The Respondent's conduct in denying and barring the Applicant, agents and or assignees access to the applicant's mining claims knows as Portree SW 26 A (b) Registration No M 5602BM, Portree 36, Registration No M 5784BMA, Portree SW 38, Registration No M 5641 BM and Portree SW 39, Registration No .M 5642BM be and is hereby declared to be unlawful.

[3] The respondent, his assignees invitees agents and all persons acting through him or at his instance be and are hereby permanently interdicted and barred from obstructing in any way restricting the applicant, access to and use of its mining claims known as Portree SW 26 A(b) Portree 36, Portree SW 38 and Potree SW 39

INTERIM RELIEF GRANTED

Pending the return date, applicant is granted the following relief:

Pending the final determination of this matter, the respondent his assignees, invitees, agents and all persons acting in his name and or at his instance and instructions be and are hereby interdicted from obstructing, interfering with or in any way restricting the applicant's its agents or assignees access to and use of its mining claims known as Portree SW 26 A(b) Portree 36, Portree SW 38 and Portree SW 39.

SERVICE OF PROVISIONAL ORDER

This provisional order shall be served on the Respondents by the applicant's legal practitioners or by a person in the employ of applicant's legal practitioners or by the Deputy Sheriff or Sheriff of the High Court.

The respondent is opposed to the application. As has somewhat became fashionable a number of points *in limine* were raised by the responded.

The points *in limine* raised are lack of urgency, material non disclosure and abuse of court process. I will delve into the preliminary points presently.

LACK OF URGENCY

Respondent avers that the dispute over the mining claims at the centre of this matter have been ongoing since 2022.The applicant and Zim Thai (applicant's predecessor) have been aware of his occupation, his homestead and his interests on the mining location for years. The coming in of a prospective foreign investor cannot suddenly clothe the application with urgency. The applicant further avers that there is no lawful order interdicting him from occupying his homestead.

CHATIKOBO J in *Kuvarega* v *Registrar General and Another* 1998(1) ZLR 188(W) at page 93 F-G said:

> "What constitutes urgency is not only the imminent arrival of the day of reckoning, a matter is urgent if at the time of the need to act arises the matter cannot wait. Urgency which stems from a deliberately or careless abstension from action until the deadline draws near is not the type of urgency contemplated by the rules"

In *Solta Group* (*Private Limited) and Solta Trading (Private Limited)* v *BP Zimbabwe* (*Private) limited and the Sheriff HH* 116-98 at page 2 ZHOU J said:

> "A party who brings proceedings urgently gains a considerable advantage over persons whose disputes are being dealt with in the normal cause of events. This preferential treatment is only extended where good cause can be shown for treating one litigant differently from most litigants for instance if it is not afforded, the eventual relief will be hollow because of the delay in obtaining it"

The applicant submitted that the need to act arose on the 16 and 17 April 2026 when respondent physically obstructed access to the mining claims and erected a barbed wire fence. Applicant further submitted that HCH 7825/23 involved a separate legal entity.

The letter dated 11 July 2025 relates to acts of trespass and the letter was a cease and desist letter and the actions complained of are distinct from the actions complained of in this case.

I have considered the submissions on urgency. What appears clear to me is that the applicant has established urgency. Applicant gives the dates giving rise to the application is 16 and 17 April 2026.Betwen that date and the filing of this application there appears to be no delay. Applicant averts to potential harm in the form of delays in due diligence exercise. HCH 7825/23 does not relate to the applicant as a party. Time and consequence requirements have been fulfilled. I find in the circumstances that urgency has been proven.

NON DISCLOSURE AND ABUSE OF COURT PROCESS

In this preliminary point respondent relates to HCH 7825 /23. Respondent avers that the history relating to HCH 7825/23 were not disclosed by the applicant.

This preliminary point fails because applicant was not a party to the proceeding in HCH 7825/23. The acts complained of under that case related to the parties thereunder of which applicant was not a party thereto. I dismiss the second point *in limine*.

I move to the merits. Applicant has annexed documents reflecting that she holds mining claims in the form of certificates of registration and transfer. There is no proof or allegation that the mining certificates have been lawfully cancelled. I find that a *prima facie* case has been established.

Among other interferences as alleged by the applicant is the fencing off of the mining by respondent resulting is non access by the applicant and his prospective investor. The issue of fencing off of the mining claim is made in paras 31 to 33 of the founding affidavit.

In response thereto in the notice of opposition the respondent does not directly relate to the fencing off of the mining claims. As can be gleened from the notice of opposition when relating to paragraphs 28 to 36 respondent skirts the issue of the fence. He relates to having been in Mt Darwin at the relevant time. He relates to a syndicate of which he is a member acquiring a special prospecting licence. In spite of the fact that applicant relates to respondent fencing the mining claim in at least three separate paragraphs respondent does not directly answer to the allegation.

On the face of it, it gives rise to the conclusion that he agrees that he fenced off the mining claim. The fencing of the mining claim is one of the actions which applicant, alleges is denying him access to the mining claim. It is effectively an impediment to accessing the mining area.

I find that in the light of the contract between applicant and a prospective investor applicant stands to be prejudiced if access is denied for the partnership potentially may create substantial benefits to the applicant.

It is clear to me that the relief sought is in the interim. The requirements of an interim interdict have been satisfied.

In the circumstances I grant the order as per the draft order which is regurgitated in the course of this judgement.

WAMAMBO J:……..

Gill,Godlohton and Gerrans, applicants' legal practitioners
Mambosasa, first respondent's legal practitioners